

25STCV10958 25STCV10958

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25STCV10958

Rebecca Robinson v. Joyce Fitzpatrick, et al.

Tuesday, July

21, 2026

[TENTATIVE]

ORDER DENYING PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT, OR ALTERNATIVELY,
SUMMARY ADJUDICATION (9199)

I.

BACKGROUND

The

complaint alleges claims arising from Defendants' alleged failure to pay Plaintiff for her interest in the licensing or other disposition of a film, "The Color of Medicine" ("the Film"). Plaintiff alleges claims for interference with contract relations, conversion, and inducement of breach of contract.

Plaintiff

moves for summary judgment or adjudication of all claims. Plaintiff timely served the motion on Defendants, who did not file an opposition.

II.

LEGAL STANDARDS

Summary judgment is

proper "if all the papers submitted show that the material facts are undisputed

and that the moving party is entitled to judgment as a matter of law.” (Code Civ. Proc., § 437c subd. (c).) A party may move for summary adjudication “as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, [or] that there is no merit to a claim for [punitive] damages.” (Code Civ. Proc., § 437c subd. (f)(1).) A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Code Civ. Proc., § 437c. subd.(f)(1).)

The court applies the three-step analysis to motions for summary judgment or adjudication: (1) identify the issues framed by the pleading, (2) determine whether the moving party established facts which negate the opponents’ claim, (3) if the moving party meets its threshold burden of persuasion and the burden shifts, determine whether the opposing party has controverted those facts with admissible evidence. (*Torres v. Reardon* (1992) 3 Cal.App.4th 831, 836.)

III.

DISCUSSION

The motion is procedurally defective. As the moving party, Plaintiff’s burden is to demonstrate that the undisputed facts prove each element of the causes of action entitling Plaintiff to judgment. If that threshold burden is established, the burden shifts to Defendants to show a triable issue of one or more material facts. (Code Civ. Proc., § 437c(p)(1).) Although Defendants filed no opposition, Plaintiff has not met her initial burden under Code of Civil Procedure section 437c.

Each cause of action includes an element of damage.

Plaintiff seeks summary judgment on all causes of action and, alternatively, summary adjudication of each cause of action. Accordingly, Plaintiff must establish, through undisputed material facts supported by admissible evidence, every essential element of each claim. Plaintiff has failed to do so.

First, Plaintiff has failed to establish the element of damages. Each of Plaintiff's asserted causes of action requires proof of resulting damage. Intentional interference with contract requires proof of resulting damages. (*Pacific Gas & Electric Co. v. Bear Stearns & Co.* (1990) 50 Cal.3d 1118, 1126.) Likewise, conversion requires proof of damages resulting from the alleged wrongful exercise of dominion over property. (*Lee v. Hanley* (2015) 61 Cal.4th 1225, 1240.)

Although

Plaintiff's separate statement establishes the existence of the Withdrawal Agreement and repeatedly asserts that Plaintiff was entitled to receive 33.33 percent of certain proceeds from the Film, the separate statement never establishes that TCM, LLC actually received proceeds subject to distribution, the amount of any such proceeds, the amount allegedly withheld from Plaintiff, or the amount of damages Plaintiff sustained. Instead, the separate statement establishes only an alleged contractual entitlement and an alleged failure to pay. It does not establish the fact or amount of Plaintiff's damages as undisputed material facts.

Second, Plaintiff fails to establish a specific amount of damages. A plaintiff seeking summary judgment bears the burden of establishing both the existence and amount of damages through undisputed admissible evidence. (*Pajaro Valley Water Management Agency v. McGrath* (2005) 128 Cal.App.4th 1093, 1106.) Here, neither the separate statement nor the supporting evidence identifies the amount of licensing revenues received, the amount of profits distributed or distributable, the amount allegedly withheld, or any calculation demonstrating Plaintiff's claimed damages. Without undisputed evidence establishing the amount recoverable, Plaintiff has not established her entitlement to judgment as a matter of law.

Third, Plaintiff has failed to establish

the essential elements of her conversion claim. Conversion requires proof of ownership or a right to possession of specific identifiable property wrongfully exercised by the defendant. Where money is the subject of a conversion claim, the funds must constitute a specific, identifiable sum rather than a mere obligation arising from an alleged contractual debt. Plaintiff's separate statement identifies no segregated fund, identifiable licensing payment, or specific sum allegedly converted. Rather, Plaintiff alleges only that Defendants failed to pay amounts allegedly owed under the Withdrawal Agreement. Such evidence is insufficient to establish, as an undisputed material fact, the

essential elements of conversion.

Finally, Plaintiff has not established every element of each cause of action through separate undisputed material facts. Much of Plaintiff's separate statement consists of repeated background facts regarding the creation of the Film, the parties' relationship, and the Withdrawal Agreement. The material facts are largely duplicated for each cause of action rather than specifically addressing the individual elements of each claim. While the separate statement establishes certain historical facts, it does not establish, through separately identified undisputed material facts, every essential element necessary to entitle Plaintiff to judgment on each cause of action. The Court cannot grant summary judgment or summary adjudication based upon generalized or repetitive factual assertions that fail to establish every required element.

Because Plaintiff has failed to satisfy her initial burden, the burden never shifts to Defendants, notwithstanding their failure to file opposition. (Code Civ. Proc., § 437c, subd. (p)(1).)

IV.

CONCLUSION

Plaintiff has failed to establish through undisputed admissible evidence every essential element of the causes of action upon which summary judgment or summary adjudication is sought. Specifically, Plaintiff has failed to establish (1) the existence of damages, (2) the amount of damages, (3) the existence of a specific identifiable sum sufficient to support the conversion claim, and (4) every element of each cause of action through separate undisputed material facts as required by Code of Civil Procedure section 437c. Accordingly, Plaintiff's Motion for Summary Judgment, or in the Alternative, Summary Adjudication, is DENIED.